

		Defendants shall give notice.
51.	Ameris Bank v. Solid Post Holdings, LLC 2024-01420372	Defendant Michael De Paola's motion for leave to file cross-complaint and first amended answer is GRANTED. (Code Civ. Proc. ["CCP"], §§ 426.30, subd. (a); 426.50; 428.10, subd. (b); 428.50, subd. (b); 473, subd. (a)(1).) 1. Cross-Complaint Defendant De Paola's cross-complaint as against Plaintiff Ameris Bank dba Balboa Capital is compulsory because it arises out of the same transaction or occurrence as Plaintiff's claims. (CCP §§ 426.10, subd. (c); 426.30, subd. (a).) Although Defendant De Paola did not file the cross-complaint at the time he filed his answer to Plaintiff's complaint, it is appropriate to grant leave to file now given that notice has been provided to Plaintiff, and Defendant De Paola did not act in bad faith. (CCP § 426.50.) Plaintiff does not dispute this. Instead, Plaintiff argues that one of two causes of action in Defendant De Paola's cross-complaint is legally insufficient. That is not the relevant test under CCP section 426.50. Defendant De Paola's cross-complaint as against Defendant Solid Post Holdings, LLC and third party Russell Luke Stefanko is permissive because it also arises out of the same transaction or occurrence as Plaintiff's claims and involves a claim in the same controversy or subject as Plaintiff's claims. (CCP § 428.10, subd. (b).) A permissive cross-complaint may be filed at any time before the court has set a date for trial. (CCP § 428.50(b).) Here, no trial date has been set yet. Plaintiff's opposition does not address this permissive cross-complaint. 2. First Amended Answer As for Defendant De Paola's motion for leave to file his proposed first amended answer, denial would be highly prejudicial as it would deprive Defendant De Paola the opportunity to assert relevant defenses to Plaintiff's claims. (<i>Hulsey v. Koehler</i> (1990) 218 Cal.App.3d 1150, 1159; <i>Morgan v. Super. Ct.</i> (1959) 172 Cal.App.2d 527, 530.) In contrast, there is no prejudice to Plaintiff as this case has not yet been set for trial, and the parties have ample time to take discovery regarding the new defenses added by the first amended answer. (<i>Hulsey</i> 218 Cal.App.3d at 1159; see also <i>Magpali v. Farmers Group, Inc.</i> (1996)

		48 Cal.App.4th 471, 488.) Plaintiff's opposition also does not address the first amended answer. Defendant De Paola is ORDERED to separately file the cross-complaint with the court within three days and serve all parties in accordance with CCP section 428.60. The cross-complaint must be filed as a separate document to ensure it is properly indexed in the record. Defendant De Paola is also ORDERED to separately file the first amended answer with the court within three days and serve all parties in this case within 30 days. The first amended answer must be filed as a separate document to ensure it is properly indexed in the record. The court vacates the trial date of February 9, 2026. The court continues the case management conference to June 30, 2025 at 9:00 a.m. in Department C28. Moving party shall give notice.
52.	Daichendt v. Aviation Consultants, Inc. 2023-01306989	Defendant Aviation Consultants, Inc.'s Motion to Bifurcate is GRANTED. (Code Civ. Proc. §1048, subd. (b).) Moving Party has shown that a separate trial of Plaintiff's fifth, sixth, and seventh causes of action for declaratory relief would "be conducive to expedition and economy." (See, e.g. ROA No. 467 ("Klein Decl.") at ¶¶ 7-12; ROA No. 471 ("Borgsmiller Decl.") at ¶¶ 1-5.) Namely, the issue of which version of the ACIOC operating agreement governs the dispute and how the provisions of the operative operating agreement should be interpreted with respect to the alleged change of control in Defendant Aviation Consultants, Inc. will obviate the need for an extended trial of many issues in Plaintiff's remaining causes of action. Thus, Moving Defendant's request for a separate trial of the declaratory relief causes of action promotes "expedition and economy" and is therefore warranted under Code Civ. Proc. §1048, subd. (b). The parties shall meet and confer regarding a proposed trial date for the bifurcated causes of action prior to the case management conference. Moving Party shall give notice.
53.	Gregory v. Moore	The motion for judgment on the pleadings ("MJOP") against Plaintiffs' third cause of action for products